सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
SAHAR, ANDHERI (EAST), MUMBAI – 400 099
e-mail- proaccsahar@gmail.com Phone-022-22816696

F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 5 Date: 12.11.2018

दिनांक 24.10.2018 को सम्पन्न स्थायी व्यापार सुविधा कमिटी की बैठक का कार्यवृत

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 24.10.2018

स्थायी व्यापार सुविधा कमिटी की मासिक बैठक दिनांक 24.10.2018 को 11.30 बजे हुई। जिसकी अध्यक्षता श्री एस. अनंत कृष्णन, आयुक्त (निर्यात), द्वारा की गयी।

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) was held on 24.10.2018 at 11.30 A.M. was presided over by Shri Vinayak Azaad, Commissioner of Customs (Import) and Shri S. Anantha Krishsnan, Commissioner of Customs(Export), ACC, Sahar.

निम्नलिखित अधिकारियों व हितधारी संगठनों के प्रतिनिधि ने इस बैठक में भाग लिया।

Following officers and representatives from the stakeholder organizations participated in the meeting:

नाम व पद/ Name & designation	संगठन/Organization
श्री सुखजीत कुमार/Shri Sukhjit Kumar, अपर आयुक्त (आयात)/Addl. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री पवन खेतान Shri Pawan Khetan, संयुक्त आयुक्त (आयात)/Jt. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री राजेश साहु/Shri Rajesh K. Sahu उप. आयुक्त (आयात)Dy. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री लोकेश जैन/Shri Shri Lokesh Jain उप. आयुक्त (आयात)Dy. Commissioner (Export)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री बी. विनायक/ Shri B. Vinayak सहायक आयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री बी. के. मोहन्ती/ Shri B. K. Mohanty सहायक आयुक्त, (जनरल)/Asst. Commissioner(General)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
प्रिया जाधव/Priya Jadhav सहायक आयुक्त (आयात)/Asst. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री एम. सी. शेख/Shri M. C. Shaikh सहायक आयुक्त (आयात)/Asst. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री विनोद सांगा/Shri Vinod Sanga सहायक आयुक्त (आयात)/Asst. Commissioner	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी

Name of attendees from stakeholder organizations	संगठन/Organization
Col. Lokesh(Retd.), Mohamed Naser, Mr. Ashok Satavase, Shri Manoj Singh, Mayilvanan .T, Nandan Kanchan	MIAL (Custodian)
Shri Sanjeev Harale, Shri Ketan Desai, Shri Paresh	BCBA (formerly known as BCHAA)
Ms. Vaishali Kulkarni	COSIA
Shri Ajit Sakhare	General Stamp Office Mumbai
Shri M.G. Chaurasia, Ms Chitaly Mehta, Shri Vineet Agrawal, Shri Bala Ayer	ACAAI
Shri K.D. Dhule, Shri S. M. Sharma	Air India & AIATSL
Mrs. Manita Churi	Asst. Drug Controller
Ms. Jyotsna Patil, Shri Bhaskar Thiurmala	JET Airways
Shri MarkFernandes	IMC
Shri S. K. Singh	SBI

Scanned by CamScanner

1. **Points discussed in the previous meeting**

A. Tremendous delay in clearing the import consignments arrived at Air India Shed, points of actions required by Air India:

In the previous meeting the representative of BCBA raised the following points:

a. After arrival, the packages are getting deposited to shed for clearance late by more than 24 Hrs.

b. Big lot, say where the number of packages are higher in quantity with heavy weight of the consignment are landing part, no intimations are available to importers about this as the EDI systems show the total packages are arrived in one IGM. During physical clearance, it is found by the CB that the goods are arrived in part.

c. While CB takes the delivery of the RMS consignment (for e.g. one package fifty kgs), on post clearance, importer is complaining part receipt of the goods, and later, it is found that package was delivered in part, this is due to mishandling of the pallet which was broken and no re-packing was done when it was broken at Air India warehouse.

d. The procedures followed by the Air India to write the R Number on each package should be changed like MIAL has done. To give R Number to each package is required manpower like loaders, fork lift and duty officer. By following this procedure, the errors are happening by giving wrong R Numbers on the packages or the packages are getting damages (it is carried out under carpet) and no corrective actions takes place.

e. Air India is not providing the facility of the online payment of the warehouse charges for import consignments, the same facilities is comfortably available by the other custodian (MIAL). The members have to stand in the long queue for payment. This is directly affecting the increase in dwell time records.

f. During the rain, there is leakage found at Air India Light Shed needs to cover the roof.

g. Inside the export shed, the loaders are not available for unloading of the packages.

h. Needs more manpower, forklift, exhaust fans, lights, camera in the shed is required.

Commissioner (Import) informed the house that reminder has been issued to Shri Mukesh Bhatia, Executive Director (WR), Air India Limited with a request to look into the matter and issue necessary directions to resolve the grievances of the trade for smooth clearance of the goods. He asked the representative of AIATSL about any development in this regard since last time when the matter was discussed and whether they have any specific time bound plan to resolve the issue.

The representative of AIATSL informed the house that they have forwarded all the issues to their Head Quarter in Delhi but no reply has been received. They further stated that they are helpless and are unable to take any decision in this regard at local level. Representatives of Trade requested the Chairman that in this situation Customs should initiate action against AIATSL under relevant rules.

[Action: Air India]

Scanned by CamScanner

B. Issuance of Registration Certificate for Consolidator at ACC:

In the previous meeting, the representative of BCBA submitted that the CBs at Air Cargo facing difficulty in obtaining themselves as a "Consolidator", CBs has to visit New Custom House to obtain the registration certificate as a consolidator. They requested that such arrangements should be made at ACC, Mumbai.

The Additional Commissioner (Import) informed the house that he is in contact with the office of the Principal Commissioner of Customs (General), New Custom House, Zone-I regarding process to start issuing the consolidator certificate at Air Cargo Complex, Mumbai itself.

[Action: Customs]

C. Requirement of Laser Printer in the Shed:

In the previous meeting, the representative of BCBA submitted that Laser Printer is required in the shed to resolve the print quality of BE, SB after OCC and LEO.

Commissioner (Import) informed the house that a letter has been written to the Additional Director General, Director General of Systems, CBIC New Delhi to resolve the issue.

[Action: Point Closed]

D. Increase of Working Hours of Drug Controller Office:

In the previous meeting, the representative of BCBA submitted that CBIC has implemented 24x7 working whereas Assistant Drug Controller (ADC) vide its office Order No. 5/00/ADC/Mumbai/2018/1174 dated 25.06.2018 is detrimental to the endeavour of reduction in dwell time for clearance. Due to change in working hours of the ADC Office, the importers/customs brokers are facing difficulty in clearance of the imports and export consignments. This reduced working hours is not only increases the dwell time records but also increases the cost and competition for the trade members, and requested to restore the working hours on Saturday from 10 am to 5.30 pm and only 2nd Saturday shall be closed holidays.

The representative of Assistant Drug Controller, ACC informed the house that they have again communicated the matter with higher authorities for further decision and necessary action. The representative also informed the house that their officers can be contacted even after office hours in case of emergencies.

[Action: Point Closed]

E. Delay in clearance due to lack of facilities at Air India Shed:

In the previous meeting, the representative of BCBA submitted that delay in handling of consignments at Air India Shed in contributing in increase in dwell time of clearance of consignment at ACC Mumbai. There are only 1 or 2 forklift operators for handling of consignments, thus leading to tremendous delay. Trade is made to run Pillar to Post for clearance of consignments through Air India. They make a sincere request to the house for addressing the matter in CCFC meeting also and addressing the same with Ministry of Civil Aviation for suitable improvement. The endeavour of reduction in dwell time is defeated for clearance of consignments in Air India.

Scanned by CamScanner

Commissioner (Import) informed the house that matter again communicated to Shri Mukesh Bhatia, Executive Director (WR), Mumbai with a request to look into the matter and issue necessary directions to resolve the grievances of the trade for smooth clearance of the goods. As the point is similar to 1 (A), hence the same is closed.

[Action: Point Closed]

2. <u>New point taken for discussion in the meeting</u>

A. Repair of Non-working Touch Screen:

The representative of BCBA submitted that touch screens which are not working since past several days is creating lot of difficulties to check the status of Bills of Entry/Shipping Bill.

Additional Commissioner (Import) informed the house that three touch screens are available in ACC, Mumbai to check status of Bills of Entry/Shipping Bills. Repair works has been carried out in two touch screen and it is working properly. For remaining one touch screen repair work will be done shortly in consultation with MIAL.

(Action: Point Closed)

B. Installation of Printer in Licence Section:

The representative of BCBA appreciated the facility given for taking the ledger printout of the licence debit details and requested for installation of a printer in the Licence Department itself to take print of RA, Ledger of Licence debit details etc.

Commissioner (Import) informed the house that the matter pertains to Commissioner (General) and directed the Deputy Commissioner of Customs, Preventive (General) to look out the issue and install a printer in licence section, if required.

(Action: Point Closed)

C. Instruction to Custodian for not asking for stamp and sign for Bills of Entry:

The representative of BCBA submitted that online goods registration for the import consignment is facilitated by ICEGATE from last week, the members are enjoying this facilities which is reducing the delay in import clearance. The association (BCBA) requested for instructions from Customs to be given to the custodian to not to ask for the off line goods registration like endorsement on the documents, the security is asking for stamp and sign of the Tax Assistant of customs on the Bills of Entry, the practice was followed in case of off line goods registration of the Bills of Entry.

Commissioner (Import) informed the house that matter will be examined and separate instruction will be issued, if necessary.

(Action: Customs/MIAL)

Scanned by CamScanner

D. Certification of Assessable Value in Words:

The representative of BCBA submitted that for the sake of clarity, we request that assessable value of the Bills of Entry should be certified in words on the face of Bills of Entry as being done for the duty amount.

The representative of BCBA informed the house that due to quality of print some time assessable value which is mentioned in digit is not clear and Bank raise query in this regard.

Commissioner (Import) informed the trade representative that the request cannot be accepted at local level as the same requires change in the Systems by Director General of Systems. He further informed that he has already written a letter to the Additional Director General, Director General of Systems, CBIC, New Delhi to resolve the issue related to print quality of Bills of Entry and Shipping Bill. When the issue of print quality is resolved, the problem faced by the trade will be automatically resolved.

(Action: Point Closed)

E. Enhancement of Fee for Entry Passes by MIAL:

The representative of BCBA submitted that MIAL entry passes were so far being issued to CBs and CB Employees at Rs.30/- per pass with a validity of 5 years. Without prior notice to the trade, MIAL has increased the entry pass fee from Rs.30/- to Rs.625/- . Further, any unilateral increase of charges without prior notice to trade is unacceptable. They suggested that providing of entry pass is the sovereign function to observe security arrangement. Trade should not be made to pay for entry passes. It is inherent function of state to provide security.

The representative of MIAL informed the house that fee of entry passes increased after many years and no representation is received in this regard from trade representatives. They assured the house that the matter will be examined and suitable action will be taken on receipt of representation in this regard.

(Action: Point Closed)

F. Suitable instruction to Console Agents / Airlines for timely issuance of DO, Cargo Arrival information, providing of correct inward date, correct information regarding part shipment, short shipment, weight difference etc.:

The representative of BCBA submitted that considerable delay in clearance of import consignment in the morning session due to late issuance of DO and papers by Console Agents/Airlines. The association requested that a suitable instruction be given to console Agents/Airlines to observe timeline for issuance of DO, Cargo Arrival information, providing of correct inward date, correct information regarding part shipment, short shipment, weight difference etc. immediately.

Commissioner (Import) informed the house that Board is contemplating to issue necessary instruction in this regard.

(Action: Customs)

Scanned by CamScanner

G. Complete Removal of Batch Register:

In the instant meeting the representative of ACAAI submitted that, for clearance of Direct Delivery shipments, the Batch office maintains a Register which has no name. There are 14 items to be entered in this register. This is a manual entry and serves no purpose and is a waste of time of the customs broker. They requested to remove this register completely stating that all the details being entered are already available in ICEGATE against that particular Bill of Entry.

Joint Commissioner of Customs (Import) informed the house that in the earlier meeting the same issue was raised by the representative of ACAAI and in this regard, approval for removal of batch register has already been taken.

(Action: Point Closed)

H. No query should be raised for documents for processing Drawback of AEO-T2 holder:

In the instant meeting the representative of ACAAI has submitted that CBIC circular 33/2016 mentions that AEO-T2, faster disbursal of drawback amount within 72 hours of EGM submission. This is not happening. In fact unnecessary queries are being raised which is only delaying the disbursement. They requested that queries relating to export documents may not be raised as these documents are already submitted at time of export without which export would not have been possible.

Commissioner (Export) informed the house that no such queries are being raised if documents have been submitted at the time of export. He further informed that only one query was raised in a case where export of Tramadol was made by the party.

(Action: Point Closed)

I. Timely delivery of SCNs, Order-in-Original etc. with proof of report:

The association has informed that ccorrespondence from customs to exporters / importers, especially SCNs are considerably delayed. There have been instances when the letters have never been received by the recipient or received after the PH date. This causes hearing to be done ex-parte which causes serious inconvenience to the exporter/importer when an O-in-O is issued in the absence of the importer/exporter. When the exporter/importer ask for acknowledgement copy of the post office, customs refuse to provide proof of delivery. They requested that a reliable system is used to send such letters and to give sufficient time to appear for any PH. Proof of delivery of the letter should be produced when asked for.

The Commissioner of Customs (Export) informed the representative of ACAAI that the SCNs or Orders-in-Original issued by speed post to the addresses of the Importer/Exporter which is available on record. However, in some cases exporter/importer changed their office location and same is not intimated to this office, in these cases SCN or Order-in-Original return back to the office with a reason that 'location changed'. He accordingly requested the trade that to avoid such situation change in the office address should be intimated to the department.

(Action: Point Closed)

Scanned by CamScanner

3. Points raised by Collector of Stamps, GOM

A. Collection of Stamp Duty by MIAL:

In the previous meeting the representative of General Stamp Office has submitted that as per Article 29 of the Maharashtra Stamp Act the delivery order is chargeable with stamp duty. The importers have to pay stamp duty on delivery order before taking delivery of their goods from Cargo. For the purpose of ease of doing business, proposal was called from MIAL (GVK) to collect the stamp duty on the delivery order so that the importer can pay stamp duty to MIAL (GVK) and get delivery of their goods immediately. The proposal in this regard was sent by the MIAL (GVK) which is approved by the Government of Maharashtra. However, till date MIAL (GVK) has not shown their willingness to do this work, this makes the importer difficult to pay stamp duty at cargo and get delivery of their goods in time. In the instant meeting Shri Ajit Sakhare, Collector of Stamps, Enforcement-1, Mumbai again stated that he had raised the issue in the previous PTFC meeting, however the point was not included in the minutes issued.

The representative of MIAL categorically denied that there is any delay on their part in this regard. He stated that digitization of payment of stamp duty was initiated by MIAL as part of ease of doing business and proposal was sent to Stamp Authorities accordingly. He also stated that the approved proposal is not viable for them due to high operating cost and high accountability. He further stated that they have already written Stamp Authorities in this regard and reply is awaited.

Shri Mark Fernandes, Chairman IMC informed the house that there should be no provision of collection of Stamp Duty after the implementation of GST regime and requested the stamp authorities to abolish the same as this is only existing in Maharashtra which is against the ease of doing business initiative of Govt. of India as there is no level playing with other Airports in India.

The Chairman informed the house that Stamp Duty is a levy by the State Government and PTFC does not have any say in the issue. Being a bilateral matter between MIAL and Stamp Authorities, it should be negotiated and settled by them only.

(Action: Point Closed)

बैठक का समापन अध्यक्ष महोदयों को धन्यवाद ज्ञापन के साथ हुआ।

The meeting ended with thanks to the Chairman.

यह स्थायी व्यापार सुविधा कमिटी के अध्यक्ष महोदय आयुक्त महोदय (निर्यात), अंचल-III के अनुमोदन से निर्गत किया जाता है।

This issues with the approval of the Commissioner of Customs (Import) and Commissioner of Customs (Export), Mumbai Customs Zone-III.

12/11/18

(सुखजीत कुमार/Sukhjit Kumar)
अपर आयुक्त सीमाशुल्क (आयात)
Addl. Commissioner of Customs (Import)
हवाई माल संकुल, सहार, मुंबई
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section ....for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Office copy.

Scanned by CamScanner